

first term to which said petition is returnable ; and if the defendant cannot be found in said county, upon the return of the sheriff of that fact, proclamation shall be made three several days of the first term to which said process is returnable, and notice shall be given in the public news-papers, as heretofore, and the cause shall be set for hearing, and be determined at the second term, as other causes in the circuit court.

2. *Be it enacted*, That where any marriage hath heretofore or may hereafter be celebrated in this state, and a separation hath or may ensue, upon satisfactory proof being made to the circuit court, according to the rules herein and heretofore prescribed, that said woman was in a state of pregnancy with a child of color, at the time of said marriage, it shall and may be lawful for said court to grant a divorce, as in other cases.

1819.

be heard first
court at which
it is return-
able.

Court to grant
divorce in cer-
tain cases.

CHAP. 21. AN ACT to authorise the register of East or West Tennessee to issue grants in certain cases. [Passed October 23, 1819.]

1. *Be it enacted by the General Assembly of the State of Tennessee*, That the register of the land office of East or West Tennessee, be and he is hereby authorized and required to issue grants on all entries which are or may hereafter be made on two or more parts of warrants or certificates, although the same may in part be issued by the commissioner, and part by the register as the case may be ; *Provided however*, That no grant shall issue for a greater quantity of land than five thousand acres, upon any warrants or certificates in this act mentioned.

1811, ch. 70.
and acts re-
ferred to.

2. *Be it enacted*, That it shall be the duty of the register in making out such grants to express therein the number of each warrant or certificate, by whom issued, and the quantity of acres of each appropriated in said grant.

3. *Be it enacted*, That this act shall take effect and be in force from and after the passing thereof.

CHAP. 22. AN ACT to consolidate the Banks of this state. (Passed November 26, 1819.)

1807, ch. 98.
1811, ch. 79.

1. *Be it enacted by the General Assembly of the State of Tennessee*, That it may be lawful for the Bank of the State of Tennessee and the Bank of Nashville to consolidate said institutions ; *Provided however*, That a majority of the stockholders and directors of said institutions respectively shall agree to the consolidation before the same shall take place.

2. *Be it enacted*, That a majority of the directors of the Bank of the State of Tennessee, or a majority of the directors of the Bank of Nashville, shall have power and authority to accept the Farmers' and Mechanics' Bank of Nashville, or the Fayetteville Tennessee Bank, as branches of their institutions, if to them it may appear that the union allowed by this act,

1817, ch. 146,
s. 13, 31. 1815,
ch 119.